

		waiver of that issue]; see also <i>Wright v. Fireman's Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 ["it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion"].) Therefore, the court "may enter judgment pursuant to the terms of the settlement," (Code Civ. Proc., § 664.06, subd. (a)), and the motion will be granted. <u>Attorney's Fees</u> Civil Code section 1717(a) states that "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civil Code, § 1717, subd. (a).) Here, the Settlement Agreement provides for an award of attorney's incurred to enforce the agreement. (See Purdy Decl., ¶ 2, Exh. 1 at p. 6, ¶ 15.) Plaintiff has presented evidence that it has incurred attorney's fees of \$1,625, which the court finds to be reasonable. (See Purdy Decl., ¶ 6.) Plaintiff shall give notice of this ruling.
5	Hughes vs. Hughes 30-2022-01239731	<u>Motion for Discovery of Peace Officer Personnel Records</u> Plaintiff Albert Hughes III's Motion for Discovery of Peace Officer Personnel Records GRANTED in part and DENIED in part. The Los Angeles County Sheriff's Department is ORDERED, through its custodian of records, to produce to the court in Department N15 Defendant Albert Hughes Jr.'s work schedule from the period of September 14, 2004 to September 21, 2004, within 15 days of service of the notice of ruling. (See <i>People v. Mooc</i> (2001) 26 Cal.4th 1216, 1228-1229.)

		The custodian of records need not produce an entire personnel file if it is not all relevant, and may withhold documents that are clearly irrelevant to Defendant Albert Hughes Jr.'s work schedule from the period of September 14, 2004 to September 21, 2004. (See <i>People v. Mooc, supra</i>, 27 Cal.4th at p. 1229-1230.) However, if the custodian of record has any doubt whether a particular document is relevant, the custodian of record is ORDERED to produce said document. (See <i>People v. Mooc, supra</i>, 27 Cal.4th at p. 1229.) The custodian of record is ORDERED to appear on October 26, 2023, at 2:30 p.m. in Department N15, and shall be prepared to state on the record and under oath "what other documents (or category of documents) not presented to the court were included in the complete personnel record, and why those were deemed irrelevant or otherwise nonresponsive" to Plaintiff Albert Hughes III's Motion for Discovery of Peace Officer Personnel Records. (See <i>People v. Mooc, supra</i>, 27 Cal.4th at p. 1229; <i>People v. Fuiava</i> (2012) 53 Cal.4th 622, 647; <i>People v. Guevara</i> (2007) 148 Cal.App.4th 62, 68-69; <i>People v. White</i> (2011) 191 Cal.App.4th 1333, 1338-1339.) The custodian of record may have present at the <i>in camera</i> review "any other persons as the [custodian or records] is willing to have present." (Evid. Code, § 915, subd. (b).) The custodian of record is ORDERED to arrange for a court reporter to be present on October 26, 2023, at 1:30 p.m., in Department N15 in order to transcribe the proceedings, or to inform the court at the earliest possible date that the custodian of record is unable to make said arrangements. (See <i>People v. Mooc, supra</i>, 27 Cal.4th at p. 1229.) The court shall conduct an <i>in camera</i> review of the documents produced to the court and shall order disclosure to Plaintiff of any records produced that are not excluded. The court also shall make a record of the documents the court examined sufficient to permit future appellate review and shall issue a ruling stating what documents are to be produced to Plaintiff Albert Hughes III. (See <i>People v. Mooc,</i>
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		<i>supra</i>, 27 Cal.4th at p. 1229; <i>People v. White</i>, <i>supra</i>, 191 Cal.App.4th at p. 1338.) The court ORDERS that the transcript of the proceedings and all copies of documents produced to the court shall be sealed. (See <i>People v. Mooc</i>, <i>supra</i>, 27 Cal.4th at p. 1229.) The court ORDERS that any peace officer personnel records disclosed to or discoverable by Albert Hughes III shall “not be used for any purpose other than a court proceeding pursuant to applicable law.” (Evid. Code, § 1045, subd. (e).) Plaintiff Albert Hughes III moves for an order directing the Los Angeles County Sheriff’s Department LASD) to make available to Plaintiff for examination, inspection, and copying “all documents concerning bailiff Albert Hughes Jr. (‘Defendant’) as defined by Penal Code section 832.8; records maintained pursuant to Penal Code section 832.5, subdivision (b); and any other records, documents, or items pertaining to the defendant Albert Hughes Jr.” (Amend. Mot. for Discovery of Peace Officer Personnel Records at p. 2:12-16.) <u>Standard for Discovery of Peace Officer Personnel Records (<i>Pitchess</i> Motion)</u> Pursuant to Penal Code section 832.7, peace officer “personnel records and records maintained by any state or local agency pursuant to Section 832.5, or information obtained from these records, are confidential and shall not be disclosed in any criminal or civil proceeding except by discovery pursuant to Sections 1043 and 1046 of the Evidence Code.” (Penal Code, § 832.7, subd. (a); see <i>Davis v. City of Sacramento</i> (1994) 24 Cal.App.4th 393, 399-400 [these provisions “take precedence over the general discovery rules outlined in the Code of Civil Procedure”].) Penal Code section 832.8 defines “personnel records” as: [A]ny file maintained under that individual’s name by his or her employing agency and containing records relating to any of the following: (a) Personal data, including marital status, family members, educational
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		and employment history, home addresses, or similar information. (b) Medical history. (c) Election of employee benefits. (d) Employee advancement, appraisal, or discipline. (e) Complaints, or investigations or complaints, concerning an event or transaction in which he or she participated, or which he or she perceived, and pertaining to the manner in which he or she performed his or her duties. (f) Any other information the disclosure of which would constitute an unwarranted invasion of personal privacy. (Penal Code, § 832.8; see <i>Ibarra v. Superior Court</i> (2013) 217 Cal.App.4th 695, 702 [“[P]ersonnel records include only the types of information enumerated in section 832.8.”].) When discovery or disclosure is sought of such peace officer personnel records, “the party seeking the discovery or disclosure shall file a written motion with the appropriate court or administrative body upon written notice to the governmental agency which has custody and control of the records.” (Evid. Code, § 1043, subd. (a).) This motion is commonly referred to as a <i>Pitchess</i> motion. (See <i>Pitchess v. Superior Court</i> (1974) 11 Cal.3d 531.) The <i>Pitchess</i> motion must include the following: (1) Identification of the proceeding in which discovery or disclosure is sought, the party seeking discovery or disclosure, the peace or custodial officer whose records are sought, the governmental agency which has custody and control of the records, and the time and place at which the motion for discovery or disclosure shall be heard. (2) A description of the type of records or
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		information sought. (3) Affidavits showing good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records. (Evid. Code, § 1043, subd. (b).) The party requesting the discovery or disclosure also must give written notice of the motion to the governmental agency that has custody and control of the records and the agency must immediately notify the individual whose records are being sought. (Evid. Code, § 1043, subds. (a), (c).) The motion involves a two-step process. (<i>Haggerty v. Superior Court</i> (2004) 117 Cal.App.4th 1079, 1085; <i>California Highway Patrol v. Superior Court</i> (2000) 84 Cal.App.4th 1010, 1019-1020.) First, the moving party must meet the requirements of Evidence Code section 1043, and in particular include "[a]ffidavits showing good cause for the discovery . . . , setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records." (<i>City of Santa Cruz v. Municipal Court</i> (1989) 49 Cal.3d 74, 84; <i>Warrick v. Superior Court</i> (2005) 35 Cal.4th 1011, 1019; see Evid. Code, § 1043, subd. (b)(3).) To show the requested information is material, the affidavits should set forth "a 'specific factual scenario' which provide[s] sufficient information to allow the trial court to assess whether the records [are] material 'to the subject matter involved in the pending litigation'." (<i>City of San Jose v. Superior Court</i> (1998) 67 Cal.App.4th 1135, 1146, quoting Evid. Code., § 1043., subd. (b)(3).) In other words, the moving party must articulate with some specificity how the personnel records being sought will support a claim or defense, or how it will impeach the officer's version of events. (See <i>Garcia v. Superior Court</i> (2007) 42 Cal.4th 63, 71.)
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		"This good cause showing is a 'relatively low threshold for discovery.' Assertions in the affidavits 'may be on information and belief and need not be based on personal knowledge, but the information sought must be requested with sufficient specificity to preclude the possibility of a [party] simply casting about for any helpful information.'" (<i>Garcia v. Superior Court, supra</i>, 42 Cal.4th at p. 70, quoting <i>City of Santa Cruz v. Municipal Court, supra</i>, 49 Cal.3d at p. 83, and <i>People v. Mooc</i> (2001) 26 Cal.4th 1216, 1226.) Second, if the trial court concludes that the party has met its initial burden of showing good cause, the court shall examine the information in chambers, pursuant to Evidence Code section 1045, to determine if there is information relevant to the subject matter in the pending litigation. (<i>Haggerty v. Superior Court, supra</i>, 117 Cal.App.4th at p. 1086.) Section 1045(b)(1) requires the court to exclude discovery in a criminal case of "the conclusions of any officer investigating a [citizen's] complaint filed pursuant to Section 832.5 of the Penal Code." (Evid. Code, § 1045, subd. (b)(1); see <i>City of San Jose v. Superior Court</i> (1993) 5 Cal.4th 47, 56 ["[T]he statutory scheme reveals a legislative intent to allow disclosure of the outcome of an investigation, i.e., the discipline imposed, without also requiring disclosure of how or why the investigating body reached that outcome."].) While Section 1045(b)(1) does not apply in a civil case such as this one, Section 1045(b)(2) still requires the court to consider whether the records "are so remote as to make disclosure of little or no practical benefit." (See Evid. Code., § 1045, subd. (b)(2).) Thus, the court must determine, on a case-by-case basis, whether the "thought processes of, and factual inferences and deductions drawn by, an officer investigating a complaint, concerning such matters as the credibility of witnesses or the significance, strength, or lack of evidence" should be produced. (See <i>Haggerty v. Superior Court, supra</i>, 117 Cal.App.4th at pp.1088-1089, quoting <i>City of San Jose v. Superior Court, supra</i>, 5 Cal.4th at p. 55.) In <i>Haggerty v. Superior Court</i>, the Court of Appeal ruled, in a civil case, that the conclusions of an officer investigating a complaint against another peace officer should be excluded from production
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		pursuant to Evidence Code section 1045(b)(2). (<i>Haggerty v. Superior Court, supra</i>, 117 Cal.App.4th at pp. 1088-1089.) However, the Court of Appeal also held that the remainder of the report investigating the complaint could be produced and that it was not sufficient merely to produce only “the names, addresses and telephone numbers of the prior complainants/witnesses.” (<i>Id.</i> at pp. 1089-1091.) If the issue in the litigation “concerns the policies or pattern of conduct of the employing agency, the court shall consider whether the information sought may be obtained from other records maintained by the employing agency in the regular course of agency business which would not necessitate the disclosure of individual personnel records.” (Evid. Code, § 1045, subd. (c).) In addition, the court “ay make any order which justice requires to protect the officer or agency from unnecessary annoyance, embarrassment or oppression.” (Evid. Code, § 1045, subd. (d).) “If those statutory provisions do not prohibit disclosure, ‘the trial court should then disclose to the defendant such information [that] is relevant to the subject matter involved in the pending litigation.” (<i>Rezek v. Superior Court</i> (2012) 206 Cal.App.4th 633, 640, quoting <i>People v. Mooc, supra</i>, 26 Cal.4th at p. 1226, and Evid. Code., § 1045, subd. (a).) The trial court has broad discretion in ruling on <i>Pitchess</i> motions and the standard of review is abuse of discretion. (<i>Haggerty v. Superior Court, supra</i>, 117 Cal.App.4th at p. 1086.) As the Supreme Court has explained: The statutory scheme thus carefully balances two directly conflicting interests: the peace officer’s just claim to confidentiality, and the criminal defendant’s equally compelling interest in all information pertinent to his defense. The relatively relaxed standards for a showing of good cause under [Evidence Code] section 1043 . . . insure the production for inspection of all potentially relevant documents. The in camera review procedure and disclosure guidelines set forth in [Evidence Code] section 1045 guarantee, in turn, a balancing of the
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	officer's privacy interests against the defendant's need for disclosure (<i>City of Santa Cruz v. Municipal Court, supra</i>, 49 Cal.3d at p. 84.) <u>Timeliness of Opposition</u> LASD filed its Opposition to Plaintiff's Motion for Peace Officer Records and Files (Pitchess) on August 23, 2023. (See ROA #93.) This was only three court days before the hearing on the motion was initially set on August 28, 2023. However, at the hearing, the parties agreed to meet and confer further on the motion and the court continued the hearing to September 25, 2023. (See ROA #98.) While the parties indicated in their most recent joint statement that they have not been able to resolve their issues, they did agree that Plaintiff was timely served with the opposition. (See ROA #108.) Thus, Plaintiff was afforded sufficient time to file a reply and did, in fact, file a reply in this case. (See ROA #102.) Thus, Plaintiff has suffered no prejudice from the late-filed opposition of LASD and the court will consider the opposition and the reply. <u>Allegations of the Complaint</u> The First Amended Complaint (FAC) asserts a causes of action for wrongful death; breach of fiduciary duty; fraud, deceive, misrepresentation; concealment; conversion; breach of contract; intentional infliction of emotional distress; and negligence. These claims are based on the allegations that on September 17, 2023, Defendant Albert Hughes, Jr. murdered Serette Mitchell-Hughes, Plaintiff's mother; that Defendant subsequently deprived Plaintiff of his rightful share of the estate of Serette Mitchell-Hughes; and that Defendant failed to repay Plaintiff \$2,000 that Plaintiff had loaned him for bail. (See FAC, ¶¶ 7, 10-12, 13, 19-73.) <u>Peace Officer Personnel Records</u> Plaintiff's motion seeks "all documents concerning bailiff Albert Hughes Jr. ('Defendant') as defined
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		by Penal Code section 832.8; records maintained pursuant to Penal Code section 832.5, subdivision (b); and any other records, documents, or items pertaining to the defendant Albert Hughes Jr." (Amend. Mot. for Discovery of Peace Officer Personnel Records at p. 2:12-16.) Even considering the relatively low threshold required to show good cause, this request is overbroad. As LASD notes, Plaintiff fails to show how or why Defendant Albert Hughes, Jr.'s entire personnel file would be relevant to or would support a claim or defense in this case. At oral argument, Plaintiff conceded that he had no idea what was in Defendant's LASD personnel file. Thus, Plaintiff's request appears to be nothing more than a fishing expedition to search for evidence to support his claims, which is not allowed. (See <i>City of Santa Cruz v. Municipal Court</i> (1989) 49 Cal.3d 74, 85 ["The information sought [in a Pitchess motion] must, however, be 'requested with adequate specificity to preclude the possibility that defendant is engaging in a fishing expedition.'"], quoting <i>Pitchess v. Superior Court, supra</i>, 11 Cal.3d at p. 538.) The instant motion also specifies 7 categories of personnel records. Although Plaintiff makes it clear that he seeks "all records concerning bailiff Albert Hughes Jr. ('Defendant') . . . including but not limited to" the 7 categories, (Amend. Mot. for Discovery of Peace Officer Personnel Records at p. 2:16-17), the court will consider each category as a separate request. The motion requests the following records, documents, or items pertaining to Defendant: 1) Work Schedule during the year of 2004, or, in the alternative, during the month of September 2004; 2) Lack of credibility/falsifying police reports; 3) Prior acts involving moral turpitude; 4) Illegal detentions, arrests, searches, and seizures; 5) Complaints of the use of excessive force or failure to intervene therein;
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		6) Any allegations/investigations of sexual harassment or sexual assault; and 7) Suspensions, demotions, transfers of work location. All of these appear to be overbroad. For example, Plaintiff fails to explain how Defendant's work schedule for all of 2004 (or even for all of September 2004) has any relationship to the allegation that Defendant murdered Serrette Mitchell-Hughes on September 17, 2004. From the allegations of the FAC, it is clear that Plaintiff is focused on Defendant's whereabouts only on September 17, 2004. (See FAC, ¶ 2 [alleging that given Defendant's work schedule, he should have been home at time of Serrette Mitchell-Hughes' alleged murder].) In fact, the FAC contains no allegations as to Defendant's whereabouts or actions on any specific date other than September 17, 2004. At best, Defendant's work schedule for the week surrounding September 17, 2004, may have some relevance to Plaintiff's claims. Therefore, the court will order that LASD produce these records for an <i>in camera</i> review by the court. As for the remainder of the categories, Plaintiff fails to show how they are material to this case. In essence, Plaintiff is seeking evidence that Defendant was a bad employee or a bad person, without connecting such evidence to the claims asserted in the FAC. In addition, Plaintiff's declaration supplies no basis for believing that Defendant's personnel file contains records of lack of credibility/falsifying police reports; acts of moral turpitude; illegal detentions, arrests, searches, and seizures; acts of excessive force or failure to intervene in acts of excessive force; sexual harassment or sexual assault; or suspensions, demotions, or transfers. In short, Plaintiff has failed to present a plausible factual foundation as to how such records would support Plaintiff's claims or that such records are in the possession of LASD. Plaintiff contends that all prior misconduct by Defendant constitutes relevant circumstantial
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		evidence that Defendant committed the wrongful acts alleged in the FAC. However, such “prior bad acts” evidence is usually inadmissible under the Evidence Code. (See Evid. Code, § 352; see also Evid. Code, § 1102.) Plaintiff also argues that the records will tend to prove that Defendant had a certain character, habit, or custom and that he acted in conformity with this character, habit or custom in committing the wrongful acts. However, Plaintiff provides no evidence that Defendant had any such character, habit, or custom or that the alleged wrongful acts were done in conformity with said character, habit, or custom. Finally, Plaintiff asserts that the records could be used to impeach Defendant. However, Plaintiff presents no factual scenario in which credibility will be an issue in this case or in which Plaintiff would need to impeach Defendant. In fact, Plaintiff has already taken the default of Defendant. (See ROA #31). Thus, Defendant has already conceded the truth of all the allegations of the complaint. The court will order that LASD produce to the court the categories of records for which good cause has been shown. The court will then review the records <i>in camera</i>. In its <i>in camera</i> review, the court will apply Evidence Code section 1045(a)-(d) to determine if any of the records produced by the LASD should be excluded. The court will then order disclosure to Plaintiff of any records produced that are not excluded, subject to the protective order that the records disclosed or discovered may not be used for any purpose other than a court proceeding pursuant to Evidence Code section 1045(e). Defendant shall give notice of this ruling.
6	Jones vs. Fairchild 30-2023-01313310	<u>Order to Show Cause re: Dismissal for Failure to Appear and Case Management Conference</u> The court will hold the hearing on these matters after the hearing on the Special Motion to Strike (Anti-SLAPP).